

IN RE: COOK

CASE NUMBER: 26CV-0211052

Tentative Ruling on Petition for Change of Name: Petitioner Sereana Marie Cook seeks to change her name to Sereana Marie Plexi. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file.

GARCIA-BROWER VS. SHACK, INC.

CASE NUMBER: 25CV-0209453

Tentative Ruling on Order to Show Cause Re: Contempt for Respondent's Failure to Comply with Court's Order to Respond to Investigative Subpoena Issued by the Labor Commissioner: On May 26, 2026, the Court ordered Respondent Shack, Inc. to produce the documents requested in the subpoena issued by Petitioner Lilia Garcia-Brower, Labor Commissioner. The Court set the compliance date as June 26, 2026. There are Proofs of Service on file indicating that the Order was served on Respondent via its Agent for Service of Process, Daniel Lackmann with personal and service by mail on June 15, 2026. On July 6, 2026, Petitioner filed a Notice of Order to Show Cause Re: Contempt Hearing. A Proof of Service filed on July 28, 2026 indicates that substitute service was made on Daniel Lackmann on July 20, 2026, however, Item 5.b. is incomplete as the server did not indicate the name or description of the competent member of the household that the documents were left with. The attached document provides that the documents were left in the space on the front door handle then mailed to the Stallion Lane address and a PO Box.

The Court does not have a valid Proof of Service indicating that Respondent received proper notice of the Order to Show Cause Hearing. The Proof of Service does not reflect service by mail. The document attached to the Proof of Service is from Linda Field, Deputy Labor Commissioner I, however, it is not signed under penalty of perjury or otherwise verified. Therefore, it is not competent evidence that the documents were mailed to Respondent. The service described is not valid substitute service. Without proper notice to Respondent, the Order to Show Cause is dropped from calendar.

IN RE: INIQUEZ

CASE NUMBER: 26CV-0210941

Tentative Ruling on Petition for Change of Name: Petitioner Venancio Iniquez seeks to change his name to Venancio Iniquez-Darrough. No proof of publication has been submitted. The Court requires a Certificate of Publication from the publishing newspaper before the Petition may be granted. If the Certificate of Publication is provided, the Court intends to grant the Petition, vacate all future dates, and close the file. The Court notes that Petitioner's middle name was not included in the Order to Show Cause. Prior to executing the Decree Changing Name, Petitioner will need to clarify if he would like his middle name to be included in the Decree Changing Name.

JONES, ET AL. VS. TAYLOR

CASE NUMBER: 22CV-0201290

Tentative Ruling on Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b): Plaintiffs Tiffanie Jones, Kim Harmon and Stephen Huston seek relief pursuant to CCP § 473(b). Defendant Sally Taylor opposes the motion. The motion was originally on calendar on August 31, 2026. Defendant appeared and counsel argued that while he received the moving papers, they were served electronically and he had not consented to electronic service and that his office policy is to not accept electronic service. A represented party must accept electronic service. CCP § 1010.6(b)(2). However, in order to allow Defendant the opportunity to provide an Opposition, the Court continued the hearing to today and ordered that any Opposition be filed by September 11, 2026 and any reply be filed by September 16, 2026. Defendant filed an Opposition on September 10, 2026. Plaintiffs did not file a Reply.

Plaintiffs seek relief from the order of dated May 11, 2026. That order granted Defendant's Motion to Terminate Case which was heard on May 11, 2026. The motion was properly noticed, but Plaintiffs did not file an Opposition. Counsel for Plaintiffs, Daniel Henderson, appeared at the hearing and argued the merits of the motion. The Court adopted the tentative ruling, which was to grant the motion. Granting of the motion resulted in a dismissal of Plaintiffs' Complaint. A Motion for Reconsideration was filed on May 19, 2026, however, it was denied on June 1, 2026 for being untimely filed and there being insufficient proof that Defendant received notice of the Motion for Reconsideration. A Judgment was entered on August 3, 2026 in favor of Defendant.

In support of this motion, Eric Alan Berg provided a declaration stating that he is the principal of the Law Office of Berg & Associates and as the principal, he is responsible for supervision of this matter. Mr. Berg failed to ensure that the Motion for Reconsideration was timely filed and properly noticed. Mr. Berg also failed to ensure that a written opposition was filed in the Motion to Terminate Case. Mr. Berg provides that these omissions were the result of his own oversight and not the result of any willful conduct, bad faith, or defiance of the discovery statutes.

CCP § 473(b) has both a discretionary provision and a mandatory provision. Plaintiffs move under the mandatory provision.

Notwithstanding any other requirements of this section, the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against the attorney's client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against the attorney's client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect. The court shall, whenever relief is granted based on an attorney's affidavit of fault, direct the attorney to pay reasonable compensatory legal fees and costs to opposing counsel or parties. However, this section shall not lengthen the time within which an action shall be brought to trial pursuant to Section 583.310.

CCP § 473(b).

Plaintiffs have presented evidence that their attorney's mistake, inadvertence, and neglect resulted in a dismissal being entered. This motion was filed within the required six-month period for bringing a motion. Therefore, the relief requested is mandatory unless the Court finds that the dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.

While it is unclear from the moving papers the exact relief requested, based on the proposed order attached to the moving papers, it appears that Plaintiffs are seeking a denial of the Motion to Terminate Case. However, the neglect of counsel was failure to file a written Opposition. Allowing Plaintiffs to file a written Opposition would not necessarily result in the Motion to Terminate Case being denied. Therefore, the only relief Plaintiffs are entitled to is the opportunity to file a written Opposition to the Motion to Terminate Case. Defendant argues that none of the evidence submitted meets the definitions of mistake, inadvertence, surprise, or neglect. The Court finds that Plaintiffs' counsel has shown that he and his firm were neglectful in failing to file a written opposition.

The Court will set aside the Judgment entered on August 3, 2026 and reset the Motion to Terminate Case for hearing, which will allow Plaintiffs to file a written opposition. However, this will not occur until Defendant is compensated for legal fees and costs reasonably incurred based on Plaintiff's counsel's neglect.

(1) Whenever the court grants relief from a default, default judgment, or dismissal based on any of the provisions of this section, the court may do any of the following:

(A) Impose a penalty of no greater than one thousand dollars (\$1,000) upon an offending attorney or party.

(B) Direct that an offending attorney pay an amount no greater than one thousand dollars (\$1,000) to the State Bar Client Security Fund.

(C) Grant other relief as is appropriate.

(2) However, where the court grants relief from a default or default judgment pursuant to this section based upon the affidavit of the defaulting party's attorney attesting to the attorney's mistake, inadvertence, surprise, or neglect, the relief shall not be made conditional upon the attorney's payment of compensatory legal fees or costs or monetary penalties imposed by the court or upon compliance with other sanctions ordered by the court.

CCP § 473(c).

Defense counsel may submit an affidavit detailing the attorney fees and costs incurred for any work done on the matter after May 11, 2026. The Court intends to order that Plaintiff's counsel pay all reasonable legal fees and costs incurred due to Plaintiff's counsel's neglect in this matter. Because this is not a default or default judgment, CCP § 473(c)(2) does not apply. Given the history of monetary sanctions in this matter that have not been paid by Plaintiffs and the long history of noncompliance, the Court will set the reasonable legal fees and costs and require payment by Mr. Berg (not Plaintiffs) prior setting aside the judgment and resetting the Motion to Terminate. Per the request made in the Opposition, the Court will also require that monetary sanctions previously imposed but not paid be paid prior to relief being granted.

Once the above conditions have been satisfied, hearing on the Motion to Terminate Case will be set and the Court will set a briefing schedule for an Opposition and Reply. When the hearing is set, the Court will allow Plaintiffs to file an Opposition and Defendant to file a Reply. The Court will then hear the Motion to Terminate Case on the merits.

The Motion for Relief from Order and to Set Aside Judgment of Dismissal Pursuant to CCP § 473(b) is **GRANTED**. Relief is conditioned on compensation to Defendant for legal fees and costs reasonably incurred in an amount to be determined by the Court and payment of unpaid monetary sanctions previously imposed. Plaintiffs did not submit a proposed Order as required by Local Rule of Court 5.17(D). Plaintiffs are ordered to submit an order consistent with the Court's ruling.

An appearance by both counsel is necessary in order to determine when Defendant will be able to submit an affidavit regarding legal fees and costs incurred after May 11, 2026. Once that sum has been determined and paid by Mr. Berg, and previously imposed sanctions have been paid, the Court will set aside the Judgment and set the Motion to Terminate Case for hearing. The Court intends on setting a status date in approximately 45-60 days regarding status of payment and to calendar the new motion date.

MOORE VS. ROCKET MORTGAGE, LLC, ET AL.

CASE NUMBER: 26CV-0210396

Tentative Ruling on Order to Show Cause Re: Preliminary Injunction: On August 28, 2026, the Court granted Plaintiff Donna Moore's request for a Temporary Restraining Order preventing a foreclosure sale from occurring on August 31, 2026. The Court set the Order to Show Cause Re: Preliminary Injunction within the required 22 days. Defendant Rocket Mortgage opposed the ex parte request for a TRO and now opposes the Preliminary Injunction. Despite being properly noticed, Defendant Clear Recon Corp. did not file an Opposition.